THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH, CHANDIGARH
COURT-II
(through Hybrid Mode)

Item 5

CA No. 195/23
And
CA(CAA) No. 29/Chd/J&K/2023
(1st Motion)

Under Section 230-232, CA 2013
R 11 NCLT

In the matter of:-

AAA Vehicleades Pvt. Ltd .....Transferor Company

And

Pathankot Vehicleades Pvt. Ltd. ....Transferee Company

Present :
Mr. Nahush Jain, Advocate for the applicant companies.

CA No. 195/23

CA No. 195/2023 is an application under Rule 11 of NCLT Rules, 2016 seeking to place on record the consent affidavits of secured creditors of the applicant companies filed vide Diary No. 03461 dated 18.01.2023. The same is taken on record subject to just exceptions.

CA(CAA) No. 29/Chd/J&K/2023

It is noted from the information submitted by the petitioner companies that the consent affidavit filed is based on the list of shareholders, secured creditors and unsecured creditors as on 30.09.2021. It was submitted by the counsel of the petitioner companies that thereafter there is no change in the share capital and composition of shareholders of petitioner companies, but the value and composition of secured creditors and unsecured creditors have been

changed. It was also submitted by the counsel that the meeting of secured creditors and unsecured creditors may be held to obtain their consent. The order in this matter is reserved.

Sd/-
(Umesh Kumar Shukla)
Member (Technical)

Sd/-
(Dr. P.S.N. Prasad)
Member (Judicial)

December 15, 2023
Vriti/Reet